

		Based on the foregoing, the motion is DENIED. Counsel for Plaintiff is ordered to give notice of this ruling.
7.	Villas Scottsdale II Homeowners' Association, Inc. v. Nicole Teresa Fusaro 2023-01356720	Before the court is the motion for attorney fees filed on February 13, 2025, by plaintiff and judgment creditor Villas Scottsdale II Homeowners' Association, Inc. (Plaintiff). The motion seeks an order awarding \$5,917.99 for attorney fees and costs incurred in this action, to be added to the domesticated judgment against defendant Nicole Teresa Fusaro (Fusaro). If a sister-state judgment provided for recovery of costs and attorney fees incurred in collecting the judgment, that becomes enforceable as a part of that decree in the domesticated judgment in California. (<i>Aspen Internat. Capital Corp. v. Marsch</i> (1991) 235 Cal.App.3d 1199, 1205–1206.) Here, Plaintiff has shown its Arizona judgment included the right to claim reasonable attorney fees and costs incurred in enforcement. (ROA 2, ¶ 7.) The motion seeks \$5,917.99 in attorney fees and costs based on the invoices describing and identifying the specific work for which fees are sought and the costs incurred. The court finds the hourly rates for the attorney time to be reasonable. With the exception of the 0.5 hours, or \$187.50 in attorney fees, spent in preparing the initial application for publication that the court rejected and found insufficient, all time and costs appear reasonable. Accordingly, the motion is GRANTED, and Plaintiff is awarded \$5,730.49 in attorney fees and costs against Fusaro. Plaintiff is ordered to submit a proposed order and to give notice of this ruling.
8.	Swift Financial, LLC v. Woman's Recovery Center, LLC 2023-01354283	Before the court is the motion of plaintiff Swift Financial, LLC as Servicing Agent for WebBank (Plaintiff), to (1) enter the stipulated judgment against defendant Women's Recovery Center, LLC d/b/a Sunsets Recovery Center (Women's Recovery Center) and (2) amend the judgment entered on April 2, 2014, so there is a final judgment against both Women's Recovery Center and defendant Ryan Schrier (Schrier), jointly and severally. As set forth below, the motion is GRANTED.

	"Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement." (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (<i>Ibid.</i>) Plaintiff and Woman's Recovery Center executed a Settlement Agreement and Release (Settlement Agreement) which stated (1) Woman's Recovery Center agreed to pay Plaintiff a total sum of \$93,600.00 by paying 36 consecutive monthly payments of \$2,600.00 commencing April 15, 2024 (Schlechter Decl. ¶ 7, Exh. 2 at Exh. A), and (2) in the event of an uncured default by Woman's Recovery Center and at the request of Plaintiff, the parties agree to an ex parte entry of stipulated judgment entered in the amount of the unpaid balance (Schlechter Decl. ¶ 7, Exh. 2 at Exh. A). The Settlement Agreement provides for judgment in favor of Plaintiff and Woman's Recovery Center in the event of a default. (Schlechter Decl. ¶ 7, Exh. 2 at Exh. A.) Plaintiff has established that default. (See Schlechter Decl., ¶¶ 9-13, Exh. 3.) Woman's Recovery Center has not filed an opposition and, thus, does not dispute Woman's Recovery Center is in default or contend it timely cured. Plaintiff is therefore entitled to judgment in its favor per the terms of the Settlement Agreement and stipulation for entry of judgment. (See Schlechter Decl. ¶ 7, Exh. 2 at Exh. A.) The motion for entry of judgment therefore is GRANTED. The court previously entered judgment against Schrier in the total amount of \$102,564.41 on April 2, 2024. (ROA 23.) The matter was dismissed as to Woman's Recovery Center with a retention of jurisdiction under Code of Civil Procedure section 664.6. By this motion Plaintiff now also seeks a judgment against Woman's Recovery Center as stated above. This case, however, may only have a single judgment. The existing judgment against Schrier therefore must be amended to include the judgment against
--	--

		Woman's Recovery Center in accordance with the Settlement Agreement (which includes a credit of \$10,400 for payment Woman's Recovery Center has made). Accordingly, the court will enter an amended judgment against both Woman's Recovery Center and Schrier, jointly and severally, in the amount of 83,826.04, which includes all interest accrued and payments made. Plaintiff is ordered to submit a proposed amended judgment consistent with this ruling and that includes a breakdown of all components making up the judgment, i.e., principal, interest, etc. Plaintiff is further ordered to give notice of this ruling.
9.	ERN Enterprises, Inc. v. Pipeline East Dallas, LLC <i>2025-01457551</i>	Before the court is the petition to compel arbitration brought by petitioner ERN Enterprises, Inc. (Petitioner). Pursuant to Code of Civil Procedure sections 1281.2 and 1290, the petition is GRANTED. Respondent Pipeline East Dallas, LLC (Respondent) is ordered to arbitrate Petitioner's claim for breach of the Claim Representation Agreement. Additionally, this action is ordered stayed, pending completion of arbitration. (Code Civ. Proc., § 1281.4.) Petitioner sufficiently served Respondent pursuant to the requirements of Code of Civil Procedure section 1290.4. A review of the applicable agreement indicates the parties did not agree to a form of service. (§3 of Anu Norwood Declaration and Exhibit 1 thereto.) Consequently, the service requirements of Code of Civil Procedure section 1290.4, subdivision (b) apply. Per the proof of service filed on March 5, 2025, Respondent was personally served with the petition and supporting papers, on February 10, 2025, via an agent for service of process. (ROA No. 13.) A proof of service filed on March 18, 2025, demonstrates notice of this hearing was personally served in the same manner on March 10, 2025. (ROA No. 21.) The above fully complies with Code of Civil Procedure section 1290.4, subdivision (b)(1). Additionally, although not necessary, Petitioner complied with the service requirements of Code of Civil Procedure section 1290.4, subdivision (b)(2). (See ROA Nos. 11 and 19.)